

CHICKASAW TRIBAL LEGISLATURE

PASSED

**Permanent Resolution Number 16-010
Amendment to Title 2, Chapter 4, of the
Code of the Chickasaw Nation
Salaries of Officials**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Judicial Department of the Chickasaw Nation requests that the Tribal Legislature review the Judicial Branch salaries and amend Title 2, Chapter 4, Section 2-425 accordingly.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Title 2, Chapter 4, Section 2-425 of the Code of the Chickasaw Nation to read as follows:

SECTION 2-425

JUDICIAL DEPARTMENT SALARIES.

A. The base salary for the Justices of the Supreme Court shall be \$650 per month, provided that the Justice that is elected to serve a term as presiding Justice shall receive an additional \$100 per month for the duration of time in which he or she serves in that capacity.

B. Attendance at one or more scheduled, special or called meetings or other official gathering that involves participation in official business of the Chickasaw Nation shall entitle a Justice to an additional allowance of \$150.00 for the meeting day. However, should attendance at such scheduled, special or called meeting or other official gathering by a Justice exceed three (3) hours, then the Justice shall be entitled to receive \$300.00 for the meeting day. In no event shall a justice's additional allowance exceed \$300.00 per meeting day.

C. Attendance at one or more scheduled conferences, training sessions, seminars, or judicial class functions that involve participation in official business of the Chickasaw Nation Tribal court, with Tribal court prior authorization, shall entitle each member an allowance of \$100.00 per meeting day for their participation.

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Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 19, 1999, by a vote of 11 ayes, 2 nays, 0 abstentions.

Robert Walton

Chairperson
Chickasaw Tribal Legislature

W. D. Porter

Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 24 1999

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Explanation: Expansion of the Tribal Court by Amendment #V to the Constitution of the Chickasaw Nation will require the Judges to spend more time on Judicial matters. Amendment #IV states that salaries for elected officials may be increased or decreased every four years only. This means salaries set in 1999 cannot be changed until 2003. This resolution will allow for compensation for additional time spent by Justices.

Requested By: Scott Colbert, Chief Justice

Presented By: Linda Briggs, Chairman
Legislative Committee

